IN THE DISTRICT COURT OF GHANA, NGLESHIE AMANFRO DISTRICT COURT HELD ON 20TH JUNE, 2025 BEFORE HER WORSHIP EMELIA K. ABRUQUAH ESQ., (MRS)

SUIT NO: /A5/03/2024

PROFESSOR STANLEY SAAMOAH **PLAINTIFF**

VRS **TDEFENDAN**

SAMUEL MARFO

PLAINTIFF… **PRESENT**

DEFENDANT… **PRESENT**

LEGAL REPRESENTATIVE…

GRACE K.O. MOFFATT HOLDING BRIEF

FOR THEOPHILUS CUDJOE FOR PLAINTIFF **PRESENT,**

GEORGE AFFUL HOLDING BRIEF FOR ALEX

YAW AGGYEI FOR DEFENDANT **PRESENT**

JUDGMENT

The Plaintiff caused the issuance of a Writ of Summons and Statement of Claim on 27th December, 2023 praying this Court for the following reliefs:

a. *Declaration that the words stated by the defendant to the Plaintiff in Twi language, that is "wu kwraa y3 nim wu dada" wufie nu kwraaa enye wu wife na si ma wu?" were slanderous and meant to injure the plaintiff emotionally and to reduce his well-earned reputation and dignity in the eyes of the public who heard it.*

b. *An Order directed at the Defendant to retract the said defamatory statements and render unqualified apology in the same manner;*

c. *General damages*

d. *Compensatory damages in the sum of Three Hundred Thousand Ghana Cedis (GHC300,000.00) for loss of reputation against the Defendant.*

e. *Cost including legal fees*

Plaintiff's claim

The Plaintiff stated that he is a Ghanaian Professor and President of a University who lives at Ngleshie Amanfro and well respected in the Ga South Municipality. It is the Plaintiff's averment that on the 6th day of September 2023, the Defendant engaged a tipper truck driver to dump laterite and huge stones in front of Plaintiff's residence in an attempt to prevent rain water from running into his house. Plaintiff averred that despite his protest and fierce resistance, Defendant and the said driver went ahead with the dumping. He averred further that, Defendant then said in the Akan language to wit, "wu kwraa y3 nim wu dada, wufie nu kwraa enye wu wife na si ma wu?". Plaintiff averred that the said statement about him was made to the hearing of the tipper truck driver and his assistant, and at least 10 passers-by and the same defamatory statement was repeated when the Plaintiff asked the Defendant to retract the statement. Plaintiff further averred that Defendant was asked to apologise to the Plaintiff

but he refused to do so and even repeated the words to the hearing of his wife and household member and also a neighbour who came to see what was happening. That his attention was drawn to the statement the defendant made which was slanderous of Plaintiff and made him become an object of ridicule in the neighbourhood. He stated that the statement made by the defendant has generated comments ostensibly to tarnish Plaintiff's hard won reputation as an academic and an educationist. Plaintiff added that the said words were uttered without just cause and was intended to cause him public ridicule in the eyes of right thinking members of society.

Plaintiff averred that the words in Twi are interpreted as thus "he is useless, and that even his house, everybody knows it was your wife who built it". That it meant he is useless, incapable and irresponsible person and this has made him to become an object of ridicule in the neighbourhood. He thus instituted this action against the Defendant seeking for the reliefs stated supra.

In his statement of defence filed on 22nd January, 2024, the Defendant stated that where the laterite and stones were dumped is about 200 metres from his house, so not true that he was using them to prevent rain water from entering his house and that the stones were bought to be used to fill bumpy roads in the area. The Defendant averred that he was there as the coordinator to direct the tipper truck driver to the area and that the words he spoke were not defamatory and there were no passers-by and because of the noise of the truck, the driver and his made did not hear their conversation. Defendant averred that he did not use the actual words stated by the plaintiff and that the translation by the Plaintiff of the alleged twi words used is not correct.

Defendant further averred that it was the Plaintiff who rather got angry and verbally assaulted the Defendant with unprintable words. He averred that he did not act or communicate in any way to tarnish the reputation of the Plaintiff to the hearing of any third party and that the Plaintiff is not entitle to his reliefs.

Issue

The main issue for determination is whether or not the alleged twi words if used by the Defendant at all, are slanderous and thus defamatory?

Legal Analysis

It is trite that in civil cases, the general rule is that the party who in his/her pleadings or writ raises issues essential to the success of his/her case assumes the onus of proof. The one who alleges, be (s)he a Plaintiff or a Defendant, assumes the initial burden of producing evidence. It is only when (s)he has succeeded in producing evidence that the other party will be required to lead rebuttal evidence, if need be. Proof lies upon him who affirms or alleges, not upon him who denies since, by the nature of things, he who denies a fact cannot produce any proof. See the following:

> **Sections 11(1) & (2), 12(2) and 14 of the Evidence Act, 1975 (NRCD 323)**
> **Takoradi Flour Mills vs. Samir Faris [2005-2006] SCGLR 882 @ 900**
> **GIHOC Refrigeration & Household vs. Jean Hanna Assi (2005-2006) SCGLR 458**
> **Tagoe v. Accra Brewery [2016] 93 GMJ 103 S.C**
> **Deliman Oil v. HFC Bank [2016] 92 GMJ 1 C.A.**

In the case of **Agbosu v Kotey; In Re Ashalley Botwe Lands [2003 – 2004] SCGLR 420** His Lordship Brobbey JSC on the burden of proof held as follows:

> *"The effect of sections 11(1) and 14 and similar sections in the Evidence Decree 1975 may be described as follows: A litigant who is a Defendant in a civil case does not need to prove anything. The Plaintiff who took the Defendant to court has to prove what he claims he is entitled to from the defendant... At the same time if the court has to make a determination of a fact or of an issue, and that determination depends on the evaluation of facts and evidence the defendant must realize that the determination cannot be made on nothing. If the defendant desires a determination to be*

made in his favour, then he has a duty to help his own cause or case by adducing before the court such facts or evidence that will induce the determination to be made in his favour…" See also **Tagoe v. Accra Brewery [2016] 93 GMJ 103 @ 123 S.C** per **Benin, JSC.**

In the case of **MICHAEL TETTEH V CENTRE FOR PLANT MEDICINE RESEARCH, GRAPHIC COMMUNICATIONS GROUP LIMITED AND THE EDITOR, GRAPHIC COMMUNICATION (2016) JELR 67312,** the court in a bid to reiterate as essential element of defamation held that where the words complained of were published "of the Plaintiff"; that is; they referred to, or were reasonably understood to refer to the Plaintiff, then there is publication.

The Supreme Court further stated in the decided case of **ABDUL MALIK KWAKU BAAKO v KENNEDY OHENE AGYAPONG (2020) JELR 87042**, that there are two steps involved in establishing that the publication was defamatory; first, whether the publication was capable of a defamatory meaning. If a defamatory meaning is found to exist, the plaintiff will have established his claim.

See also the case of **BENJAMIN KWASI DUFFOUR v BANK OF GHANA & ANOR** on the two step principle as stated supra.

The Plaintiff who is asserting therefore has the onus of discharging the burden of producing sufficient evidence in respect of his claims on a balance of probabilities.

Plaintiff's evidence-in-chief by way of Witness Statement filed on 9th February, 2024, detailed that on the 6th day of September 2023, the defendant engaged a tipper truck driver to dump laterite and huge stones in front of Plaintiff's residence in an attempt to prevent rain water from running into his house. Plaintiff testified that despite his protest and fierce resistance, Defendant and the said driver went ahead with the dumping. Plaintiff added that, Defendant

then said in the Akan language, "wu kwraa y3 nim wu dada, wufie nu kwraa enye wu wife na si ma wu?". Plaintiff said that the said statement about him was made to the hearing of the tipper truck driver and his assistant, Plaintiff's wife, the plaintiff's household and at least 10 passers-by and the same defamatory statement was repeated when the Plaintiff asked the Defendant to retract the statement by a letter from his lawyers, but he still refused to do so. Plaintiff further testified that it was after the Defendant was served with court summons that he started asking people to intervene including the then member of Parliament for the area.

Defendant testified via his Witness Statement filed on the 9th day of February, 2024 that the laterite and stones were purchased by one Sylvester Tetteh, the then Member of Parliament for Bortiano-Ngleshie Amanfrom to be used to level the bumpy road. He testified that he was only there in his capacity as the Coordinator for the Amanfro electoral area, to direct the tipper truck driver to the area. He further testified that, his statement to the Plaintiff was not defamatory because he did not use the actual words as indicated by the Plaintiff and besides there were no passers-by, again, that the place was so noisy from the sound coming from the engine of the tipper truck which made it almost impossible for the driver and his assistant to have heard anything. According to the Defendant, even the direct translation of the alleged words stated is not correct and that is rather the Plaintiff who got angry and verbally assaulted him with unprintable words. He said he did not act or communicate in any way to tarnish the reputation of the Plaintiff to the hearing of any third party.

ANALYSIS

As indicated above, it is the duty of the Plaintiff to lead sufficient evidence in support of his claim that the Defendant uttered those alleged words on him. The question is, are those alleged words if spoken at all defamatory in nature? In DUFFOUR V. BANK OF GHANA & ANOR. (2022) JELR 109685 (SC). The Supreme Court, in determining whether the words bore a defamatory meaning or not, Benin JSC restated the common law principle on the definition and law of Defamation. Quoting Halsbury's Laws of England (4th ed) (Reissue) Vol 28 page

7, para 10, he defined the tort as follows: ''A defamatory statement is a statement which tends to lower a person in the estimation of right-thinking members of society generally or to cause him to be shunned or avoided or to expose him to hatred, contempt or ridicule, or to convey an imputation on him disparaging or injurious to him in his office, profession, calling trade or business." The above words per my little understanding of the twi language were put in a rhetorical question form and not a conclusive statement and therefore have no defamatory effect on the Plaintiff. During cross examination of defendant by counsel for the Plaintiff this was what transpired;

Q. "What were the actual words in paragraph 9 of your Witness Statement?"

A. "I did not make those assertions so whatever is there is what the Plaintiff himself said".

To begin, Plaintiff brought no concrete evidence to this court to show that Defendant actually made the said statement and if so if anybody heard same since the Defendant has vehemently denied uttering those words or statement. For Plaintiff to succeed in his claim, he must demonstrate with clarity that the Defendant made such a statement and to the hearing of all those Plaintiff claims were present. The absence of this critical piece of evidence weakens his case considerably. As indicated earlier the onus of proof in matters like the instant case is on the Plaintiff to lead credible and admissible evidence to establish his case and the standard of this proof is by a preponderance of probabilities to avoid a ruling against him.

This rule of evidence regarding the onus of proof was appropriately stated by Kpegah JA, as he then was, in the case of Zambrama v Segbedzi (1991) 2 GLR 221 at page 246.

"… a person who makes an averment or assertion which is denied by his opponent has a burden to establish that his averments or assertion is true. And he does not discharge this burden unless he leads admissible and credible evidence from which the fact or facts he asserts can properly and safely be inferred…".

Plaintiff's wife and household, all of whom Plaintiff claimed heard the statement made by the Defendant, why were they not invited as witnesses to testify to corroborate his evidence before this court and also his neighbour whom he said was present? This is what the Plaintiff answered when Counsel for the defendant asked the following questions:

Q: I am putting it to you that your wife as well as the purported neighbour have not filed any documents or witness statement in this Court to corroborate your claim.

A: That was not necessary because the Defendant admitted it in the presence of the neighbour, some elders in my own house for which he came to plead.

Q: I am putting it to you that the Defendant never admitted to anyone including your good self for using the exact Twi words you have pleaded in paragraph 5 of your statement of claim.

A: He admitted those statements undisputably and that 'spirit' of the same and not the letter is very consistent.

Q: Please Prof, I am putting it to you that you have not brought any of those persons to this Court to testify for you because you know very well the Defendant never admitted before those persons for using the exact Twi words.

A: Bringing those persons was not necessary because of the Defendant's earlier admission and subsequently visit to my house to plead.

Assuming without admitting that the Defendant earlier admitted to Plaintiff's claims, which said admission is not before this court though, the Plaintiff is still under an obligation to prove his case on the balance of the probabilities in court. Plaintiff failure to invite those material witnesses to corroborate his evidence, in the opinion of the court, translate to mean that, either they were not actually present or that those twi words were not actually spoken by the Defendant. The court therefore comes to the conclusion that such twi words if spoken at all were not to the hearing of any third party, hence no

corroboration and therefore, no publication to the hearing of the public to have lowered the reputation of the Plaintiff in the eyes of right thinking people of the society.

In the light of the deficiencies in the evidence presented by the Plaintiff, particularly, the failure to provide at least one credible witness to corroborate his claim, the court is of the opinion that the Plaintiff could not prove his claims on the balance of the probabilities.

From the totality of the evidence produced, all the reliefs sought by Plaintiff failed as Plaintiff failed to lead credible evidence to proof them and they are accordingly dismissed.

Costs of GHC1000.00 is awarded in favour of the Defendant as against the Plaintiff.

(SGD)

H/W EMELIA K. ABRUQUAH (MRS)

(MAGISTRATE)